

Senate File 474

S-3098

1 Amend Senate File 474 as follows:

2 1. Page 1, line 6, after <chapter 135H> by inserting
3 <, unless the psychiatric medical institution for children
4 provides substance use disorder services>

5 2. Page 3, by striking lines 13 through 21 and inserting:

6 <16. "Serious emotional disturbance" means a diagnosable
7 mental, behavioral, or emotional disorder that meets the
8 diagnostic criteria specified in the most current diagnostic
9 and statistical manual of mental disorders published by
10 the American psychiatric association. "Serious emotional
11 disturbance" does not include a substance use disorder or
12 developmental disorder unless such disorder co-occurs with a
13 diagnosable mental, behavioral, or emotional disorder.>

14 3. By striking page 4, line 29, through page 5, line 4, and
15 inserting:

16 <135H.4 Licensure.

17 1. A person shall not establish, operate, or maintain a
18 psychiatric medical institution for children unless the person
19 ~~obtains a license for the institution under this chapter and~~
20 ~~either holds a license under section 237.3, subsection 2,~~
21 ~~paragraph "a", as a comprehensive residential facility for~~
22 ~~children or holds a license under section 125.13, if the~~
23 ~~facility provides substance use disorder treatment under~~
24 ~~chapter 237, and holds a license under this chapter.~~

25 2. In addition to the requirements under subsection 1, a
26 person shall not provide substance use disorder services at a
27 psychiatric medical institution for children unless the person
28 holds a license under section 125.13. The department of health
29 and human services shall adopt rules pursuant to chapter 17A
30 to create an expedited process for a person to simultaneously
31 obtain a license under section 125.13 and a license as a
32 comprehensive residential facility for children under chapter
33 237.>

34 4. Page 7, by striking lines 10 through 17.

35 5. Page 11, by striking lines 29 and 30 and inserting:

1 <Sec. _____. Section 232.2, subsection 34, Code 2025, is
2 amended to read as follows:>
3 6. Page 12, by striking lines 4 through 7.
4 7. Page 19, line 32, by striking <nonsecure> and inserting
5 <nonsecure>
6 8. Page 20, line 17, by striking <nonsecure> and inserting
7 <nonsecure>
8 9. By striking page 21, line 3, through page 22, line 12.
9 10. Page 23, by striking lines 30 through 33.
10 11. Page 25, line 9, after <1.> by inserting <a.>
11 12. Page 25, line 13, by striking <and>
12 13. Page 25, line 14, after <families> by inserting <, and
13 four members of the general assembly>
14 14. Page 25, line 18, after <chapter 232.> by inserting <The
15 members of the general assembly shall include two senators,
16 one appointed by the majority leader of the senate and one
17 appointed by the minority leader of the senate, and two
18 representatives, one appointed by the majority leader of the
19 house of representatives and one appointed by the minority
20 leader of the house of representatives.>
21 15. Page 25, line 19, by striking <2.> and inserting <b.>
22 16. Page 25, line 25, by striking <3.> and inserting <2.>
23 17. Page 26, by striking lines 6 through 9 and inserting
24 <provision of the medical assistance program.>
25 18. Page 26, before line 10 by inserting:
26 <Sec. _____. ADMINISTRATIVE RULES. The department of health
27 and human services shall adopt rules pursuant to chapter
28 17A to require that the care furnished by an entity under
29 section 237C.1, subsection 2, paragraph "j", as enacted in
30 this division of this Act, shall be provided to persons under
31 eighteen years of age in settings separate from individuals
32 over the age of twenty-one.>
33 19. Title page, by striking lines 3 through 5 and inserting
34 <evaluations for youth involved in juvenile delinquency and
35 child in need of assistance proceedings; the licensing>

1 20. By renumbering as necessary.

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